Case No. S068894

IN THE SUPREME COURT OF THE STATE OF OREGON

STATE OF OREGON, Plaintiff–Respondent, Petitioner on Review, v. AHMED GBANABOM TURAY, Defendant–Appellant, Respondent on Review.	))))))))	Washington County Circuit Court Case No. 17CR59493 Court of Appeals Case No. A166973 Supreme Court Case No. S068894

BRIEF OF AMICI CURIAE THE AMERICAN CIVIL LIBERTIES UNION AND THE AMERICAN CIVIL LIBERTIES UNION OF OREGON IN SUPPORT OF DEFENDANT–APPELLANT TURAY

Review of the Decision of the Court of Appeal from a Judgment of the Circuit Court for Washington County
Hon. OSCAR GARCIA, Judge

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INTERESTS OF AMICI CURIAE

The American Civil Liberties Union ("ACLU") is a nationwide, nonprofit, nonpartisan organization dedicated to the principles of liberty and equality embodied in the Constitution and our nation's civil rights laws. The American Civil Liberties Union of Oregon ("ACLU of Oregon") is the Oregon state affiliate of the national ACLU.

Since its founding in 1920, the ACLU has frequently appeared before the Supreme Court and other state and federal courts in numerous cases implicating Americans' right to privacy in the digital age, including as counsel in *Carpenter v. United States*, 138 S. Ct. 2206 (2018) and as amicus in *State v. Pittman*, 367 Or. 498, 479 P.3d 1028 (2021) (en banc), *People v. Hughes*, 506 Mich. 512, 958 N.W.2d 98 (2020), *United States v. Ganias*, 824 F.3d 199 (2d Cir. 2016) (en banc), *United States v. Hasbajrami*, 945 F.3d 641 (2d Cir. 2019), and *United States v. Warshak*, 631 F.3d 266 (6th Cir. 2010). The ACLU of Oregon has appeared frequently before this Court and federal courts advocating for the right to privacy and free speech in digital media and the right to privacy generally under the Fourth Amendment to the U.S. Constitution and Article I, section 9 of the Oregon Constitution, including in *Pittman*, 367 Or. 498, 479 P.3d 1028, *United States v. Mohamud*, 843 F.3d 420 (9th Cir. 2016), and *United States v. Pineda-Moreno*, 688 F.3d 1087 (9th Cir. 2012).

FACTUAL BACKGROUND

Detectives in Beaverton were investigating advertisements listed on the website Backpage offering sex with a minor, J, individually or with an adult woman named Gregg. Police arranged a "date" with J, who was dropped off by an unknown man. J eventually identified Turay, the defendant in this case, as the person who dropped her off. Officers located and stopped Turay in his car, seizing several cell phones, a pack of condoms, and a motel room key from the vehicle. They then sought and obtained a warrant to search the contents of the seized phones. The warrant specified nine categories of information to be "searched, seized, and analyzed."

Turay moved to suppress all information obtained as a result of these searches, arguing that the affidavit filed in support of the warrant application failed to establish probable cause or, in the alternative, was insufficiently particular and was overbroad under Article I, section 9. The trial court denied the motion and admitted the evidence. Turay was convicted of one count of compelling prostitution, ORS 167.017. *State v. Turay*, 313 Or. App. 45, 493 P.3d 1058 (2021), *rev. allowed*, 369 Or. 69 (Dec. 9, 2021).

The appellate court rejected Turay's probable cause claim. With respect to the particularity and overbreadth claims, however, the court applied *State v. Mansor*, 363 Or. 185, 421 P.3d 323 (2018), this Court's landmark case holding, in part, that a warrant authorizing a search of digital data must specify both

what information is sought and—to the extent possible—when that information was created (e.g., by providing date ranges to narrow the search).

This Court granted review. *Turay*, 369 Or. 69. The State has conceded in its brief on the merits that the second, seventh, and ninth search commands were invalid. *See* Pet'r Br. at 13, 22–23, 28–29, 32. That leaves the first, fourth, and eighth commands in dispute before this Court.

INTRODUCTION AND SUMMARY OF ARGUMENT

This Court has recognized that cell phones today generate and store a huge amount of extremely revealing information about the people who use them. *Mansor*, 363 Or. at 209–10 (citing the "unique characteristics of the cell phone described in *Riley* [*v. California*, 573 U.S. 373 (2014)]"). Warrants for cell-phone searches must closely adhere to the probable cause showing, lest authority to search a device for evidence of one crime mutate into authority to search the entirety of the device for evidence of any crime—a prohibited general search. In *Mansor*, this Court held that warrants meet the probable cause obligation by describing what information related to the alleged criminal conduct may be found on the device, as well as by imposing a temporal limitation on the search, if one is available and relevant. 363 Or. at 216–17. The Court also held that, because even a narrowly drawn search term will mean that law enforcement examines some information that is not responsive to probable

cause, Article I, section 9 does not allow the State to use that information. *Id.* at 221.

These are critical provisions for ensuring that searches of extensive and sensitive personal data do not overstep constitutional bounds. But here, the State seeks to roll back *Mansor*'s protections by advocating for broad and imprecise rules that will not effectively guide issuing courts. Pet'r Br. at 2–3. The Court should reject the State's proposed rules of law, which neither provide adequate guidance to courts nor ensure that warrants issued in accordance with the proposed rules will be constitutional. Warrants must not permit rummaging searches through any data on a device, an outcome that the State's proposed rules would allow. The State's proposals muddle rather than improve on the rule this Court cites in *Mansor*: A "warrant must identify, as specifically as reasonably possible in the circumstances, the information to be searched for, including, if relevant and available, the time period during which that information was created, accessed, or otherwise used." 363 Or. at 218.

Further, in *Mansor*, the Court did not address the conditions under which warrants must identify the type of computer file to be sought,[1] although it suggested that such a requirement would be "unworkable." *Id.* at 215. Amici request that the Court consider the question in this case, and hold that warrants

[1] The defendant in *Mansor* did not make this argument before this Court. 363 Or. at 341 ("Defendant clarifies that that element [of what investigating officers believe will be found on the electronic devices] does not necessarily mean the type of computer file, such as an email, text, or photograph.")

usually can and—where possible—should limit police searches by relevant file type.

It is true that an issuing judge can only "describe what investigating officers believe will be found on electronic devices with as much specificity as possible under the circumstances." *Id.* at 216 (quoting *Wheeler v. State*, 135 A.3d 282, 304 (Del. 2016)). And in some cases, courts may not be able to describe a specific file or type of digital evidence supported by probable cause. However, that will not usually be the case. Indeed, courts often will have sufficient context to limit search warrants to types of computer files, such as images, text messages, word-processing documents authored by the computer owner, or similar. These categories can be further refined by keyword searches, restricting police access to chats only between suspects, for example.

The rules amici propose do not limit where on a device law enforcement may search for relevant information,[2] but they do ensure that a search is narrowly tailored to capture only the type of data supported by probable cause, wherever it may be stored.

Finally, when searches happen pursuant to invalid warrant provisions, as apparently happened here, the evidence from those searches must be

[2]In *Mansor*, this Court rejected the defendant's argument that warrants must identify places or specific locations where evidence is likely to be found on the computer. 363 Or. at 216–17.

suppressed, even if the information could have been searched for and discovered under a valid provision.

ARGUMENT

I. THE STATE'S PROPOSED RULES OF LAW VIOLATE THE FEDERAL AND STATE CONSTITUTIONS.

The State argues for two rules of law regarding particularity requirements for warrants for electronic searches. First, the State proposes that a warrant's search command is sufficiently particular if it provides a "reasonable degree of certainty [as to] whether a particular piece of data falls within the scope of that search command, no matter how broad that scope is." Pet'r Br. at 2–3 (emphasis added). Second, the State proposes that a search command is not overbroad so long as it is "within the scope of the probable cause supporting it. . . . Even if that description is not certain or precise enough to meet the specificity standard." *Id.* at 3 (emphasis added). Alone or together, these rules do not adequately guide judges issuing warrants and are insufficiently protective of privacy in electronic information stored on a cell phone or hard drive.

The State's proposed rules of law would lead judges in Oregon to issue unconstitutional warrants. Assume that police presented an affidavit establishing probable cause to believe that the defendant took photographs on his cell phone of paraphernalia associated with selling illegal drugs on June 12. The corresponding warrant would authorize a search of "all data stored on the defendant's phone for photos related to drug sales on June 12." That warrant

would satisfy the temporal limitation requirement of *Mansor*. But it is not particular and would allow extensive rummaging through all data on the phone.

II. THIS COURT SHOULD HOLD THAT WHERE SOME OF THE WARRANT IS INVALID, ANY EVIDENCE ACTUALLY OBTAINED PURSUANT TO THOSE PROVISIONS SHOULD BE SUPPRESSED.

As in *State v. Bock*, 310 Or. App. 329, the State's argument is unworkable, and fails to serve the purpose of the exclusionary rule. Courts cannot retrace the forensic investigator's steps to determine whether a different search might have captured the same evidence. *Id.* at 340. Guessing what might have happened if the warrant terms were valid is a speculative enterprise beyond the scope of evidentiary proof.

The court's insight is no less true here. The State's rule would bless an overbroad search pursuant to an unconstitutional warrant despite the lack of guidance to the police, and the improper review of private information.

CONCLUSION

The judgment of the Court of Appeals should be affirmed.

Dated: March 29, 2022. Respectfully Submitted,

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this brief complies with the word-count limitation in ORAP 5.05(1)(b)(ii)(B) because the word count on this brief (as described in ORAP 5.05(1)(d)(i)) is 8,876 words.

I certify that the size of the type in this brief is not smaller than fourteen points for both the text of the brief and footnotes, as required under ORAP 5.05(3)(b)(ii).

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CERTIFICATE OF FILING AND SERVICE

I HEREBY CERTIFY that on March 29, 2022, I caused the foregoing Brief of Amici Curiae The American Civil Liberties Union and The American Civil Liberties Union of Oregon in Support of Defendant–Appellant Turay to be electronically filed with the State Court Administrator, Records Section, by using the Court's electronic filing system.

I FURTHER CERTIFY that on March 29, 2022, I electronically served the foregoing Brief of Amici Curiae The American Civil Liberties Union and The American Civil Liberties Union of Oregon in Support of Defendant–Appellant Turay upon Ernest Lannet and Eric Johansen, attorneys for Appellant, and Peenesh Shah, Ellen F. Rosenblum, and Benjamin Guttman, attorneys for Petitioner, using the Court's electronic filing system.

Dated: March 29, 2022

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